

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #10	CCRB Case #: 201709487	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/15/2017 7:25 PM, Thursday, 11/16/2017 12:00 AM	Location of Incident: Inside of the 114th Precinct stationhouse	18 Mo. SOL 5/15/2019	Precinct: 114		
Date/Time CV Reported Thu, 11/16/2017 11:57 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/16/2017 11:57 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Reed	05209	954267	PSA 9
2. SGT Dennis Friendly	00233	930185	PSA 9

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ignacio Delrio	21908	952661	PSA 9

Officer(s)	Allegation	Investigator Recommendation
A . POM Kevin Reed	Abuse: Police Officer Kevin Reed refused to provide his shield number to § 87(2)(b)	A . Unfounded
B . SGT Dennis Friendly	Abuse: Sergeant Dennis Friendly authorized the forcible removal of § 87(2)(b) to the hospital.	B . Alleged Victim Unavailable

Case Summary

On November 16, 2017, § 87(2)(b) filed this complaint with the CCRB via telephone on behalf of her son, § 87(2)(b). On the same date, she also filed a duplicate complaint with IAB via telephone. The duplicate complaint was forwarded to the CCRB via IAB log #2017-46120 on November 27, 2017.

At approximately 7:25 p.m. on November 15, 2017, PO Thomas Reed and PO Ignacio Delrio of PSA 9 arrested § 87(2)(b) and his friend § 87(2)(b) outside of § 87(2)(b).
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

PO Reed and PO Delrio transported § 87(2)(b) and § 87(2)(b) to the 114th Precinct stationhouse for arrest processing. While there, § 87(2)(b) called to find out § 87(2)(b) status. She spoke to PO Reed, who gave § 87(2)(b) his shield number. Later, § 87(2)(b) called § 87(2)(b) from a stationhouse phone. PO Reed stood next to him during the call. § 87(2)(b) allegedly asked PO Reed for his shield number. PO Reed refused to do so, stating that he had already given it to § 87(2)(b).
(Allegation A: Abuse of Authority – Refusal to provide shield number, § 87(2)(g)).

At approximately 1:00 a.m. on November 16, 2017, § 87(2)(b) was debriefed by the 114th Precinct Detective Squad. Afterwards, PO Reed and PO Delrio escorted him back to the holding cell. When they removed his handcuffs, § 87(2)(b) allegedly jerked the handcuffs from PO Reed's grip, causing a laceration to PO Reed's hands. As a result of this, § 87(2)(b) was re-arrested and charged with assaulting an officer. Afterwards, Sgt. Dennis Friendly contacted EMS in order to have § 87(2)(b) removed to the hospital as an emotionally disturbed person (EDP). § 87(2)(b) did not want to go, but was forcibly removed (**Allegation B: Abuse of Authority – Forcible removal to the hospital, § 87(2)(g)**). § 87(2)(b) was taken to § 87(2)(b). He was released from the hospital later that day.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Kevin Reed refused to provide his shield number to § 87(2)(b)

§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on December 15, 2017 (See Board Review #01: § 87(2)(b) Statement). She stated that after § 87(2)(b) was arrested, she called the 114th Precinct stationhouse directly and asked to speak to § 87(2)(b) arresting officer. PO Reed spoke to § 87(2)(b) and provided her with his name and shield number. Later that evening, § 87(2)(b) himself called § 87(2)(b) from the stationhouse. § 87(2)(b) told § 87(2)(b) that there was an officer standing next to him at the time. The investigation identified the officer as PO Reed. § 87(2)(b) told him to ask the officer for his shield number. She then heard § 87(2)(b) ask PO Reed for his shield number. She heard PO Reed reply, "What you want it for? I already gave it to her."

§ 87(2)(b) asked PO Reed again for his shield number. PO Reed told him, “I already gave it to her.” The call then disconnected. § 87(2)(b) did not hear PO Reed provide his shield number to § 87(2)(b) during the call.

The 114th Precinct’s prisoner holding pen roster identified four prisoners who were incarcerated at the same time as § 87(2)(b) and § 87(2)(b). Numerous contact attempts were made to both § 87(2)(b) and § 87(2)(b). Neither of them responded to these contact attempts or provided a sworn statement regarding the incident (See Board Review #02: Contact Attempts).

The investigation was able to reach both § 87(2)(b) and § 87(2)(b). Both of them provided telephone statements (See Board Review #03-04: Witness Statements). § 87(2)(b) and § 87(2)(b) both stated that they were kept in the stationhouse holding cells along with § 87(2)(b) and that they witnessed § 87(2)(b) make a phone call using a telephone located in the same room as the holding cell. Both witnesses stated that PO Reed stood with § 87(2)(b) during the call. § 87(2)(b) did not pay attention to § 87(2)(b) at the time and did not hear what was said during the phone call. He was not aware of § 87(2)(b) asking PO Reed for his shield number, or of PO Reed refusing to provide that information to § 87(2)(b). § 87(2)(b) did overhear § 87(2)(b) conversation. While he could not hear who § 87(2)(b) was speaking to, he gathered from § 87(2)(b) side of the conversation that he was speaking to his mother. § 87(2)(b) did not recall hearing § 87(2)(b) ask PO Reed for his shield number or PO Reed refuse to provide his shield number to § 87(2)(b). Attempts were made to schedule § 87(2)(b) for a sworn statement. He schedule an in-person interview, but did not appear for it. § 87(2)(b) did not respond to subsequent contact attempts made to reschedule the interview (See Board Review: Contact Attempts).

PO Reed was interviewed at the CCRB on February 9, 2018 (See Board Review #05: PO Reed’s Statement). He confirmed that he spoke to § 87(2)(b) over the telephone, and that he identified himself to her. He also confirmed that he later escorted § 87(2)(b) to a telephone located in the same room as the holding cell so that he could call his mother. PO Reed stood next to § 87(2)(b) during the call. He did not recall the content of § 87(2)(b) conversation with § 87(2)(b). He did not recall § 87(2)(b) addressing him at any point during the telephone call. PO Reed did not recall § 87(2)(b) asking for his shield number during the telephone call. He denied that he refused to provide his name or shield number to § 87(2)(b) during the telephone call or at any other time. PO Reed stated that § 87(2)(b) repeatedly asked him for his name and shield number during his arrest processing earlier in the evening. He stated that he provided his name and shield number to § 87(2)(b) each time it was requested.

PO Delrio was interviewed at the CCRB on February 26, 2018 (See Board Review #06: PO Delrio’s Statement). He recalled that PO Reed escorted § 87(2)(b) to the telephone in the holding cell room. PO Delrio was not with PO Reed and § 87(2)(b) at the time, but he did at one point walk past the holding cell room and see PO Reed and § 87(2)(b) standing by the telephone. As PO Delrio passed, he heard § 87(2)(b) tell PO Reed, “I know you’re fucking scared.” He did not hear any other conversation either between § 87(2)(b) and PO Reed or § 87(2)(b) and the person on the telephone. PO Delrio did not hear § 87(2)(b) ask PO Reed for his shield number while on

the telephone, or of PO Reed refusing to provide that information. PO Delrio was not aware of § 87(2)(b) asking PO Reed for his name or shield number at any time during the incident.

Sgt. Friendly was interviewed at the CCRB on March 2, 2018 (See Board Review #07: Sgt. Friendly's Statement). He stated that he traveled to the stationhouse in order to verify § 87(2)(b) and § 87(2)(b)'s arrests. Afterwards, he resumed patrol. He later returned to the stationhouse when § 87(2)(b) was being transported to Queens Central Booking. He was not at the stationhouse between these times. He denied witnessing § 87(2)(b) make any telephone calls. He was not aware of § 87(2)(b) asking PO Reed for his shield number at any time, or of PO Reed refusing to provide his shield number to § 87(2)(b).

§ 87(2)(g)

Allegation (B) Abuse of Authority: Sergeant Dennis Friendly authorized the forcible removal of § 87(2)(b) to the hospital.

It is undisputed that § 87(2)(b) was removed from the 114th Precinct stationhouse and taken to § 87(2)(b) as an EDP. He was released from the hospital a few hours later.

§ 87(2)(b) stated that § 87(2)(b) told her after his release that he was taken to the hospital against his will. She herself, though, was not present at the stationhouse. She did not witness § 87(2)(b) removal to the hospital or the circumstances leading up to it. She was not aware of § 87(2)(b) being involved in any physical altercations while he was in custody at the stationhouse.

Neither § 87(2)(b) nor § 87(2)(b) who were both incarcerated at the stationhouse along with § 87(2)(b) responded to contact attempts. Neither provided any statement to the CCRB. § 87(2)(b) and § 87(2)(b) did provide telephone statements. Both stated that they observed § 87(2)(b) engage in a physical struggle with PO Reed and PO Delrio, during which the officers held § 87(2)(b) face-first against a wall. Afterwards, the officers escorted § 87(2)(b) out of the holding cell area. Neither prisoner was aware of what happened to § 87(2)(b) after he was removed from his holding cell. Neither was aware of § 87(2)(b) being hospitalized at any point.

The 114th Precinct prisoner holding pen roster indicates that § 87(2)(b) and § 87(2)(b) were held at the stationhouse until 1:20 a.m. on November 16, 2017, in order to be transported to Queens Central Booking (See Board Review #08: Prisoner Holding Pen Roster). The prehospital care report summary prepared for § 87(2)(b) by EMS indicates that an ambulance was requested at 1:36 a.m. and removed § 87(2)(b) from the stationhouse at 2:18 a.m. (See Board Review #09: Medical Records). The medical treatment of prisoner report prepared for § 87(2)(b) states that he was transported to the hospital as an EDP at 2:30 a.m. (See Board Review #10: MTPR).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
 - [REDACTED]
- § 87(2)(b) [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- PO Reed has been a member of service for five years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g) [REDACTED]
- Sgt. Friendly has been a member of service for fifteen years and has been a subject in 23 CCRB complaints and 47 allegations, of which six were substantiated.
 - 201001417 involved substantiated allegations of physical force, premises entered and/or searched, threat of arrest and refusal to provide name and/or shield number. The Board recommended charges. The NYPD imposed Command Discipline B for the physical force, premises entered and/or searched and refusal to provide name and/or shield allegations. It declined to prosecute the threat of arrest allegation.
 - 201212831 involved two substantiated allegations of premises entered and/or searched. The Board recommended charges. The APU dismissed the case.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 23, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review #13: Notice of Claim).

- § 87(2)(b) [REDACTED]
- § 87(2)(b) [REDACTED]
- § 87(2)(b) [REDACTED]

Allegations Not Pleaded

- It is undisputed that PO Reed and PO Delrio stopped and arrested § 87(2)(b) and § 87(2)(b). Both officers stated that they had observed § 87(2)(b) and § 87(2)(b) riding a bicycle on pedestrian walkways in a reckless manner. They initially held back and did not approach § 87(2)(b) and § 87(2)(b) as they suspected that the two civilians were selling drugs. They later approached § 87(2)(b) and § 87(2)(b) after they allegedly witnessed § 87(2)(b) engage in a hand-to-hand transaction. Both civilians were arrested, and both were charged with § 87(2)(b). Therefore, stop allegations have not been pleaded in regards.
- In his telephone statement, § 87(2)(b) alleged that § 87(2)(b) engaged in a physical struggle with officers when PO Reed was escorting him from the 114th Precinct Detective Squad's office to the holding cell. He alleged that officers restrained § 87(2)(b) by holding him against the bars of the holding cell and pulling his arms behind his back. He was not aware of § 87(2)(b) sustaining any injuries as a result of this action. § 87(2)(b) stated that he was asleep at the beginning of the struggle, and did not see what transpired between § 87(2)(b) and the officers. When he woke up, he saw the officers holding § 87(2)(b) against a wall with his hands cuffed. The force described by § 87(2)(b) and § 87(2)(b) does not rise to the level of misconduct. Therefore, a physical force allegation has not been pleaded in regards.

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date